

immunity from injunctive relief.¹⁵ No Court of Appeals ever has concluded that immunity bars injunctive relief against a judge. See n. 6, *supra*. At least seven Circuits have indicated affirmatively that there is no immunity bar to such relief, and in situations where in their judgment an injunction against a judicial officer was necessary to prevent irreparable injury to a petitioner's constitutional rights, courts have granted that relief.¹⁶

For the most part, injunctive relief against a judge raises concerns different from those addressed by the protection of judges from damages awards. The limitations already imposed by the requirements for obtaining equitable relief against any defendant—a showing of an inadequate remedy at law and of a serious risk of irreparable harm, see *Beacon Theatres, Inc. v. Westover*, 359 U. S. 500, 506–507 (1959)¹⁷—severely curtail the risk that judges will be harassed and their independence compromised by the threat of having to

¹⁵ See, e. g., *Floyd and Barker*, 12 Co. Rep. 23, 77 Eng. Rep. 1305 (K. B. 1607) (criminal prosecution for conspiracy); *Taaffe v. Downes*, reprinted in footnote in *Calder v. Halket*, 13 Eng. Rep. 12, 15, n. (a) (P. C. 1840) (damages for assault and false imprisonment); *Scott v. Stansfield*, 3 L. R. Ex. 220 (1868) (damages for slander); *Randall v. Brigham*, 7 Wall. 523 (1869) (damages for removing an attorney from the bar); *Bradley v. Fisher*, 13 Wall. 335 (1872) (damages for improperly removing the plaintiff from the rolls of court); *Pierson v. Ray*, 386 U. S. 547 (1967) (damages for false conviction); *Stump v. Sparkman*, 435 U. S. 349 (1978) (damages resulting from the judge's order that the plaintiff be sterilized).

¹⁶ See, e. g., *United States v. McLeod*, 385 F. 2d 734 (CA5 1967) (injunction to protect Negroes who attempted to register to vote from harassing actions by state officials, including a judge); *Fernandez v. Trias Monge*, 586 F. 2d 848 (CA1 1978) (injunction against unconstitutional pretrial detention procedure); *WXYZ, Inc. v. Hand*, 658 F. 2d 420 (CA6 1981) (injunction against enforcement of a court's "gag" order, when the court had threatened violators with contempt).

¹⁷ When the question is whether a federal court should enjoin a pending state-court proceeding, "even irreparable injury is insufficient unless it is 'both great and immediate.'" *Younger v. Harris*, 401 U. S. 37, 46 (1971), quoting *Fenner v. Boykin*, 271 U. S. 240, 243–244 (1926). See discussion at n. 19, *infra*.